

		noted in <i>Graham</i>, the enhancement may be eliminated if, as here, the lodestar rate is based on the present hourly rate rather than the lesser rate applicable when services were rendered. (<i>Id.</i>) Plaintiffs to give notice.
5	Romero vs. South Coast Villas Homeowners Association	<u>Motion for Leave (re First Amended Complaint)</u> The court GRANTS Plaintiffs JESUS ROMERO and JACQUELINE ROMERO's unopposed motion for leave to file a first amended complaint. The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc., § 473(a)(1).) The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473(a)(1).) California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. (<i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) Thus, leave to amend to more clearly state a plaintiff's theories of liability should be liberally allowed. (<i>Rainer v. Buena Community Memorial Hospital</i> (1971) 18 Cal.App.3d 240, 253-254.) This liberality only applies so long as there is no prejudice to the opposing party. (<i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564.) Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party is shown. (<i>Estate of Murphy v. Gulf Ins. Co.</i> (1978) 82 Cal.App.3d 304, 311.)